

OFFICIAL EXHIBITS

FILED
July 25, 2025
INDIANA UTILITY
REGULATORY COMMISSION

**PREFILED TESTIMONY OF MIKE DELLINGER
ON BEHALF OF
THE BOARD OF COMMISSIONERS OF MORGAN COUNTY
IURC CAUSE NO. 46239**

I. INTRODUCTION

IURC
INTERVENOR'S *Morgan Co*
EXHIBIT NO. 2
9-11-25 AT
DATE REPORTER

Q1. Please state your name and business address.

A1. My name is Mike Dellinger and I am employed by the Morgan County Economic Development Corporation ("Morgan County EDC"). My business address is 4 East Harrison Street, Mooresville, IN 46158.

Q2. Please further explain the purpose of the Morgan County EDC.

A2. We are a private organization that uses public and private funds to facilitate local investments.

Q3. Please outline your educational background and work experience.

A3. From 1982 to 1983 I spent time at Universitaet Trier University in Germany, studying politics and the German language. In 1984, I earned a Bachelor's degree from Ball State University with a double major in German and political science. From 1992 to 1995 I completed studies at the University of Oklahoma's Economic Development Institute. I also was in a graduate studies program at Ball State University from 1993 to 1995, concentrating on public administration. I have been employed and engaged in community and economic development since 1987 on the local and regional levels in four states, including Indiana, Iowa, South Dakota and Nebraska.

Q4. Have you previously testified before the Indiana Utility Regulatory Commission?

A4. No.

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II. ECONOMIC DEVELOPMENT OPPORTUNITY

1 **Q5. Please discuss the economic development activities your organization has been**
2 **involved in that you believe are relevant to this proceeding.**

3 A5. In 2024, Morgan County EDC was contracted with the Town of Monrovia (“Monrovia”)
4 to provide economic development services to the town. The Monrovia Town Council had
5 previously appointed Michael Conner, a citizen appointee, as the town council’s
6 representative on the Morgan County EDC board of directors. At the time, Mr. Conner also
7 served as president of the Monrovia Redevelopment Commission.

8 During this time, I was contacted to meet with a developer to discuss a potential
9 economic development project in Morgan County. At that time, I notified Kevin Collier,
10 president of the Monrovia Town Council, that a technology company was considering real
11 estate in Monroe Township as a development location. While we did not discuss further
12 details, Mr. Collier encouraged me to pursue the opportunity. Subsequent to my
13 conversation with Mr. Collier, he resigned his position as town council president because
14 he had been defeated in the primary election in 2024. Philip Fowler was then elected by
15 the town council to serve as council president for the remainder of 2024. I also informed
16 Mr. Fowler that a technology company was considering Monroe Township as an
17 investment location, and he encouraged me to pursue the opportunity.

18 **Q6. Please provide further information about your pursuit of the potential economic**
19 **development referenced above.**

20 A6. During initial discussions with the developer, I was informed that they were considering
21 development of a data center campus. For clarity, I believe this is the same project

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1 discussed in Monrovia witness Lou Savka's testimony. During these initial discussions, I
2 promoted to the developer the opportunity for Monrovia to provide infrastructure support
3 for the project. The developer was hesitant but agreed to follow my recommendation that
4 we contact Monrovia to discuss the opportunity.

5 **Q7. Please further describe those conversations.**

6 A7. In August of 2024, I was involved in a discussion with Victoria Herring from the Indiana
7 Economic Development Corporation and Shawn Massengale, the contracted operator for
8 Monrovia's sanitary sewer facilities. We discussed capacity at the town's sewer plant and
9 the town's previously determined plan to undertake maintenance of the sewer operations
10 rather than expanding sewer capacity for growth.

11 Subsequently, in 2024, sewer discussions were expanded to include the developer
12 and other town officials. In addition to Mr. Massengale, other town officials engaged
13 included Mr. Conner (Rural Development Corporation president and town council
14 representative to the Morgan County EDC board of directors), Mr. Fowler as town council
15 president, and Dustin Kaufman, who was a town council member and the town council's
16 liaison to the sanitary sewer operations.

17 The sewer discussions outlined the developer's interest in obtaining extra-territorial
18 sewer service from the town. The developer was very clear in stating that the project would
19 not seek annexation into the town of the acreage (391 acres) that the developer had under
20 contract for due diligence and prospective rezoning by the Morgan County Commission.
21 The developer indicated that part of the potential development site (80 acres) was already
22 annexed into the town of Monrovia, and that site would likely remain undeveloped as an

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1 agricultural buffer. I was encouraged by the developer's perspective that the annexed
2 acreage could hold future development potential.

3 In our discussions, the developer outlined interest in constructing a new sewer plant
4 adjacent to the town's existing sewer plant. The new sewer plant would provide outflow
5 for the project's treated cooling water. The new plant would be dedicated to the town and
6 could provide a revenue stream for the town, as the project would pay to use the new sewer
7 infrastructure. The developer also indicated an interest in expanding the town's existing
8 sanitary sewer operations to support the project's need for sanitary sewer (human waste)
9 and to provide capacity for the town's future sewer needs.

10 **Q8. In addition to the sewer improvements did you talk to the developer about any other**
11 **improvements for Monrovia?**

12 A8. Yes. In addition to recognizing a sewer need within the Town of Monrovia, I asked the
13 developer if the project could assist with the issue of "dry" hydrants in a key growth
14 neighborhood within the town. Project engineers noted to me that the treated cooling water
15 could not be diverted to provide such a resource. I noted that, with the potential for millions
16 of gallons of water serving the development each day, a solution for the dry hydrant issue
17 could be developed between the interested parties including the water resource. It was my
18 intent that this would be included in a community request that would be part of the project
19 outcome.

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1 **Q9. Is there anything else regarding your work with this development that you would like**
2 **to add?**

3 A9. Yes, in January of 2025, the Monrovia Town Council roster changed. Mr. Collier (who had
4 lost in the primary election) was succeeded by Tammy Everett as a town council member.
5 The town council elected Mrs. Everett to succeed Mr. Fowler as town council president.
6 Subsequently, Mr. Kaufman resigned from the town council. Mr. Kaufman was eventually
7 succeeded by Kyle Marsh in a precinct caucus election.

8 **Q10. Did you work with the new Monrovia Town Council on the development?**

9 A10. Yes. This data center campus, in my opinion, would be a positive economic development
10 for the County, so in January after the Town Council roster changed, efforts were made to
11 include all town council members in discussions with the developer and county
12 government officials regarding the project. Such discussions included the forthcoming
13 request to the Board of Commissioners of Morgan County ("Morgan County") for rezoning
14 of the 391 acres in Monroe Township. I should note, due to the nature of the project, the
15 developer required non-disclosure agreements from individuals who were to receive
16 certain details regarding the project, so that was conveyed to the new Town Council
17 members.

III. OUTREACH TO MONROVIA

18 **Q11. Please summarize the outreach to the Monrovia council members.**

19 A11. Carol Youngblood was approached by Morgan County Council President Kim Merideth,
20 who asked Ms. Youngblood to join the discussions. Ms. Youngblood agreed to participate
21 and signed the nondisclosure agreement. Subsequently, she requested and was granted the

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1 rescission of her non-disclosure agreement without participating in the discussions with the
2 developer and county government officials.

3 Mrs. Everett was contacted by Morgan County Council member Troy Sprinkle,
4 who asked Mrs. Everett to join the discussions. Mrs. Everett then noted to me in a telephone
5 conversation that she had refused to sign the nondisclosure agreement on the advice of her
6 attorney, then corrected her statement to note that it was on the advice of the town attorney.
7 I noted to Mrs. Everett that I was aware of three key concerns for the town – the need for
8 revenue growth, sewer infrastructure issues, and “dry” hydrants in the town that I had
9 persisted in including in the project discussions. I asked her to join the discussion, and she
10 refused.

11 I met with Loren Moore. Mr. Moore agreed to meet with the developer and county
12 government officials, and he participated in a discussion about the project and our interest
13 in extra-territorial sewer service.

14 After Mr. Marsh succeeded Mr. Kaufman as a town council member, my attempts
15 to contact Mr. Marsh by telephone and email were unsuccessful.

IV. REZONING EFFORTS

16 **Q12. You mentioned that you assisted with an application to Morgan County to rezone**
17 **certain land to allow it to be used for the data center development. Please discuss these**
18 **efforts further.**

19 **A12.** As part of the economic development efforts, my organization assisted with the application
20 filed on January 13, 2025. Morgan County EDC served as the applicant to provide

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1 confidentiality for the project during its due diligence process. As I stated above,
2 individuals could gain further information about the project if they executed a non-
3 disclosure agreement with the developer. So, there were officials who met with the
4 developer and were given certain information, including the developer's identity, but with
5 confidentiality protection. Even though this information was confidential, I believe these
6 meetings showed the officials that there was validity to the project developer and end user.
7 In addition to preparing the application with the assistance of counsel, I attended public
8 meetings where the request was presented to Morgan County. On February 4, 2025, as the
9 applicant for rezoning, Morgan County EDC held a public information meeting to share
10 project information prior to our rezoning public hearing that was held on February 10,
11 2025, with the Morgan County Planning Commission.

12 **Q13. How would you characterize Monrovia's response to these efforts?**

13 A13. Unfortunately, not very positive. Prior to the public information meeting on February 4,
14 2025, Mrs. Everett visited the Morgan County government center in Martinsville and
15 approached two county officials to inquire about and comment on the rezoning proposal
16 and the proposed development project. During that visit, Mrs. Everett made criticizing
17 remarks to Terry Brock, president of the Morgan County Planning Commission, and Josh
18 Messmer, county administrator as appointed by the Morgan County Commission. When
19 Mrs. Everett made disparaging comments to Mr. Brock regarding my involvement in the
20 project, he emphasized in reply that he is my direct supervisor as president of the Morgan
21 County EDC, via appointment by the Morgan County Commission and as elected by voting
22 members of the Morgan County EDC.

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1 **Q14. Please summarize what occurred at the February 4, 2025, public meeting held by**
2 **Morgan County EDC.**

3 A14. Because the rezoning application was filed with the county government in January of 2025,
4 there had been media coverage by news outlets prior to our public information meeting.
5 Public concerns had been expressed in the media about elected and appointed officials not
6 being transparent about the proposal. As a result of those concerns and during the public
7 information meeting, I was explicit in noting to the public that sewer infrastructure, the
8 revenue stream, and the “dry” hydrant issue in the Homestead subdivision in the town were
9 part of the considerations for the economic development. These were the same
10 considerations I noted above that I had shared with Mrs. Everett. In addition, during the
11 public information meeting, I noted that we were working to win the project and its direct
12 benefits rather than experiencing its potential location just across Keller Hill Road (our
13 county line) in Hendricks County, where acreage was/is already zoned for data center
14 operations and where Morgan County and Monrovia would observe the data center campus
15 without any direct benefit.

16 **Q15. Please further discuss the Morgan County Planning Commission meeting held on**
17 **February 10, 2025.**

18 A15. The Morgan County Planning Commission meeting was held on February 10, 2025, and I
19 attended that meeting and subsequent County Commission and County Council meetings
20 on behalf of Morgan County EDC as the rezoning applicant and in support of tax policy
21 that the county and the developer had outlined. At the February 10, 2025, public hearing,
22 we explained that this development would bring 500 to 1,000 construction jobs to the area

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1 and at least 50 high-paying jobs at the center itself after it was operational. The project is
2 also expected to generate tax revenue for the county and surrounding townships. Other
3 members of the public were allowed to speak on the rezoning request and expressed
4 positiveness for the project and prospective tax revenue. The Planning Commission
5 approved a motion to forward a favorable recommendation to the County Commission,
6 who subsequently approved the rezoning by Ordinance on February 18, 2025. The meeting
7 minutes for both meetings are attached as Attachment 1 (MD). I am also providing links to
8 the YouTube recordings on those meetings.¹

9 **Q16. Was there anyone who spoke in opposition of the Project?**

10 A16. Yes. Of particular note, representatives of Monrovia voiced opposition to the data center
11 development. An attorney also spoke on behalf of Monrovia against the rezoning request.

12 **Q17. Does Monrovia's opposition to the data center development represent a change from**
13 **Monrovia's approach at earlier times?**

14 A17. Yes. As I explained above, the control of the Monrovia Town Council changed following
15 the municipal elections held in 2024. Prior to those elections, Monrovia was supportive of
16 this project and had commenced discussions regarding how it could provide service to the
17 project. Monrovia's support of the project changed when control of the Town Council
18 changed in 2025.

¹ 2/10/25 Plan Commission Meeting <https://youtube.com/live/0NwLVPVu8tM?feature=share> and 2/18/25
Commissioner Meeting <https://youtube.com/live/Svu09h29GIw?feature=share>.

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1 **Q18. Why do you believe it is important to understand that Monrovia in particular is**
2 **opposed to the Project?**

3 A18. Because it is my understanding that with this proceeding, Monrovia is seeking to be the
4 exclusive service provider in the area where the data center will be located. I fear Monrovia
5 makes this request so that it is has the ability to kill this project and deny the area of the
6 economic benefits it can bring. It has always been my objective to include Monrovia as the
7 sewer solution for this project because the development has the potential to solve so many
8 long-standing problems for the Town's sewer and water utilities. However, my experience
9 with the Town has shown me that it is hesitant to expand its service capabilities. In 2022,
10 two town officials encouraged the town council to expand its capacity, but the Town
11 Council members opted for plant maintenance instead. Mr. Conner shared with me that he
12 and Danny Chennault (former town clerk and town manager) urged Kevin Collier, Loren
13 Moore, and Carol Youngblood to expand, but that advice was not taken. Ultimately, if the
14 Town is unwilling to be a participant, then the Town should not be in a position to deny
15 the rest of Morgan County the benefits from this economic development project through
16 having itself declared the exclusive sewer provider.

V. CONCLUSION

17 **Q19. Was Attachment 1 (MD) prepared by you or under your direction?**

18 A19. Yes. The attachment I sponsor was prepared by me or under my direction.

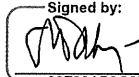
19 **Q20. Does this conclude your testimony in this matter?**

20 A20. Yes.

VERIFICATION

I, Mike Dellinger, affirm under penalties of perjury, that the foregoing representations are true and correct to the best of my knowledge, information and belief.

Dated: 7/24/2025

Signed by: 
09F20A03C6B04A2
Mike Dellinger

MORGAN COUNTY PLAN COMMISSION
County Administration Building
Martinsville, Indiana
February 10, 2025

MINUTES

MEMBERS PRESENT

Terry Brock - President
Dustin Frye - Vice President
Jason Maxwell - Secretary
Melanie DePoy
Kenny Hale
Brian Patrick
Bill Rumbaugh
Joe Crone

OTHERS PRESENT

Laura Parker - Plan Director
Anne Cowgur - County Attorney
Amber York - Planning Staff
Sandy Mosier - Planning Staff

MEMBERS ABSENT

Michele Jones

CALL TO ORDER

President Brock called the meeting to order at 6:30 pm.

APPROVAL OF MINUTES

President Brock let the board know that new member Joe Crone was running late and would be sworn in upon arrival. President Brock called for a motion on the January meeting minutes. Member DePoy motioned to approve as presented. Seconded by Member Rumbaugh. Motion passed 6-0-1 with Member Patrick abstaining.

APPROVAL OF AGENDA

President Brock called for a motion to approve the agenda. Member Rumbaugh motioned to approve. Seconded by Member Maxwell. Motion passed 7-0.

OLD BUSINESS (Continued from January 13, 2025)

MIP-25-02

Glen Shake

3 Loan LLC
0 E Dayhuff Road
Mooresville, IN 46158

Minor Plat

Brown

Zoning

AG

President Brock informed the board that the petitioner has withdrawn the request. Member Hale made a motion to accept the withdrawn application. Vice President Frye seconded. Motion carried 7-0.

NEW BUSINESS

RP-25-01

Ross Drapalik o/b/o

Michael Galloway
0 E Rembrandt Drive
Martinsville, IN 46151

Vacate/Replat

Jackson

Zoning

R-2

President Brock read the petitioner's request for a vacate and replat. Ross Drapalik from Drapalik Surveying, representing Petitioner Michael Galloway, explained the request to vacate two lots in Painted Hills subdivision and replat them as one larger lot. Mr. Drapalik said his client wants to build a house in the middle of the two lots. President Brock asked if the Petitioner will still pay two HOA fees. Mr. Drapalik stated he does not think fees are based on the number of lots owned. President Brock asked if anyone else had questions. The board indicated they did not.

With no one else signed up to speak on this petition, President Brock closed the public hearing and opened the floor for discussion or a motion. Member Maxwell made a motion to approve RP-25-01. Member Patrick seconded. Motion carried 7-0.

<u>RP-25-02</u>	<u>Jason & Kimberly LaRue</u>	<u>Vacate/Replat</u>	<u>Zoning</u>
	2600 & 2700 Southampton Drive	Washington	R-1
	Martinsville, IN 46151		

President Brock read the petitioner's request for a vacate and replat. Petitioner Kimberly LaRue explained the request to vacate the two lots in Foxcliff Estates and then recombine them as one lot so they can build a primary residence. President Brock asked Ross Drapalik, surveyor for the LaRue replat, if there was a drainage easement between the two lots. Mr. Drapalik said there was no drainage easement in that area. Member Hale asked how far the house will be setback on the lot. Mrs. LaRue stated she does not know off the top of her head. The builder is the one that will determine where it sits on the property. President Brock asked the board if they had any other questions for the petitioner. The board indicated they did not.

With no one else signed up to speak, President Brock closed the public hearing and opened the floor for discussion or a motion. Vice President Frye made a motion to approve RP-25-02. Member DePoy seconded. The motion carried 7-0.

<u>MIP-25-03</u>	<u>Kevin Presnell o/b/o</u>	<u>Minor Plat</u>	<u>Zoning</u>
	FFCIC/TL LLC	Green	AG
	0 Skunk Hollow Road		
	Martinsville, IN 46151		

President Brock read the petitioner's request for a 6-lot minor plat. Petitioner Kevin Presnell explained his request to split 29 acres into a 6-lot minor plat. The lots will be served by well and septic and each will have its own road frontage for access. President Brock asked if they plan to rezone the lots to R-1. Mr. Presnell stated they do not plan on changing them from AG. President Brock asked if anyone else had questions for Mr. Presnell. The board indicated they did not.

President Brock called forward those signed up to speak on this request. Stacy Howe stated that she has a lot of concerns about this minor plat which included the difficulty in finding water for the wells, impact on traffic and schools, and the effect on her property taxes. Steve Koch said he is worried about the wells in the area, property tax increases,

schools, and sufficient roads. President Brock asked if the board had any other questions. The board indicated they did not.

Joe Crone entered the meeting. President Brock paused the discussion and asked Attorney Anne Cowgur to swear in Mr. Crone as a new Plan Commission member. He then resumed the discussion of MIP-25-03.

President Brock called Petitioner Kevin Presnell back up for any rebuttal. He said they have already dedicated the required amount of public right-of-way along Skunk Hollow Road so if the county needed to do any work on the road, there would be plenty of room. Mr. Presnell stated there are different ways to improve well function and he plans to use a newer method involving a cistern. President Brock asked if the board had any other questions. The board indicated they did not.

President Brock closed the public hearing and opened the floor for discussion or a motion on the petition. Member Hale made a motion to approve MIP-25-03. Member Crone seconded. Motion carried 8-0.

<u>PUD-25-01</u>	<u>Mike Dellinger o/b/o</u>	<u>PUD Zoning</u>	<u>Zoning</u>
	Morgan County Economic	Monroe	AG/R3 to PUD
	Development Corp representing a		
	group of 10 property owners bounded by		
	W SR 42/Keller Hill Road/Antioch Road/ West Union Church Road		
	Mooresville, IN 46158		

President Brock informed the audience that the petitioner is allowed as much time as the board finds necessary to adequately present their petition. Because of the number of people signed up to address the board, each person will have a three-minute time limit. There was discussion among the board about reducing the time limit due to the volume of people, but the board ultimately decided to stay with the three-minute limit.

President Brock read the petitioner's request to rezone from AG/R3 to PUD. Mr. Joe Calderon appeared on behalf of the end user, the property owners included in the rezone request, and the MCEDC. He explained the proposed PUD included about 390 acres and will closely follow the I-1 standards since the county does not have a zoning district specifically for data centers. Mr. Calderon stated this PUD will allow for data centers and light manufacturing. He indicated there are a lot of reasons why data centers are needed, but the primary reason is that people depend on technology for everything in their lives.

Mr. Calderon said this particular location is attractive because of the AES transmission power lines that run through it. It allows us to work with AES to create a small substation that will give power to each building proposed. Mr. Calderon stated that this site is also in a good place based on the county's comprehensive plan which shows that the county wants growth in this area. He said this area has potential for water and sewer utility connection, but if they are not able to make arrangements with local utilities to obtain water and sewer, they will use different technologies to operate. Mr. Calderon pointed out that warehouses are not a permitted use in the PUD because they were aware that residents of the area did not want more warehouses. He explained how the PUD triples

the 50-foot minimum setback for I-1 which means they will have a 150-foot setback from the property line. And within that setback, they will construct a 10-foot earthen berm to create additional buffering for the residential areas adjacent to the data center campus. There will be trees and shrubs planted all along the top of the berm to help soften the view and help with noise reduction. Mr. Calderon stated that the layout they presented tonight shows the 150 ft setback with berm area in green. The precise layout of the building may have to change somewhat, but regardless, they cannot violate the 150-foot setback.

Mr. Calderon informed the board that they held a public information meeting on February 4th to explain the details of the proposed PUD with the community. They heard from the community that there were concerns about noise and how disturbing it might be, so they have since determined the sound coming from the data center will be about 65 decibels. He said industry standards equate it to conversation levels or a dishwasher running. He also said this is how loud it will be at the property lines and that there are times when it will be quieter such as at night when the cooling equipment will not run as much. Mr. Calderon stated that most of the noise will come from the cooling systems or when they have to switch to generators for routine maintenance or during a power outage.

Mr. Calderon emphasized they want to be good neighbors. They will keep the area well maintained and noted this use is not going to be a site that has a lot of truck traffic once the construction is finished. There will be semi-trucks occasionally when computer equipment is being replaced, but that will be intermittent. President Brock asked if they will use State Road 42 or the county roads for access. Mr. Calderon said they will use State Road 42 as the main entrance for the site, but they plan to use the county road (Keller Hill) as an additional construction entrance. Member Hale asked about the red lines shown on the concept plan. Mr. Calderon stated that the dotted red line around the perimeter is the 150-foot setback line and the solid red are the AES easements for power. Member DePoy asked about the a timetable for construction. Mr. Calderon said they expect approximately 5 to 8 years for build out depending on the market. Member Maxwell asked about the outlook for sewer and water utilities. Mr. Calderon stated they prefer to work with local providers for service, but if it's not available, then they will use other technologies to provide what is needed to operate. Member Rumbaugh asked where the water from the buildings will go. Mr. Calderon said they will have multiple ponds to catch the run-off from the buildings.

Member Patrick asked if they will seek tax abatement and he also asked how the number of employees and pay range. Mr. Calderon said construction will generate about 500 jobs and after completion, there will be around 50 high-paying tech jobs in addition to maintenance, security, and custodial staff. Mr. Calderon also noted that they normally offer grants or incentives for the communities where they are located. President Brock commented that in 2019 the state passed legislation providing for abatement of equipment specifically to attract data centers to Indiana. President Brock asked if the board had any other questions. The board indicated they did not.

President Brock then opened the public hearing and began calling those signed up in favor of the petition. Hiram Trisler stated that he is in favor of the data center because he worked in this field for over 40 years and has seen the benefits it can bring to a

community. Justin Clements said he is excited about the jobs this will bring to the county. He created a tech business and would have loved to keep it in Morgan County, but at that time the area did not have the things he needed so he had to move it outside the county. He thinks the data center will open the door for other technology companies to come to the county and will also let the youth here have tech jobs or create internships. President Brock asked the board if they had any questions. The board indicated they did not.

President Brock then began calling forward those signed up in opposition or as concerned citizens. Their comments are summarized as follows:

- Brett Hinshaw expressed concerns about noise when generators are running.
- Brian Dillman thinks all the secrecy and signed NDAs feel like they sold out the citizens. He does not understand why it has to be built in that location instead of somewhere else along the power lines.
- Diana Jennings passed when called.
- Adam Bales had questions about abatements, taxes, impacts to their electric bill, health impacts, impacts on bees, and who pays for the water to be extended to this site. He believes that initially there will be a lot of jobs, but it will drop off after construction is done.
- Loren Moore said he sits on the Monrovia town council and he is concerned about noise affecting the neighbors and why they won't share the name of the company.
- Brittney Davis is concerned about the water supply, where it will go when they are done using it, and what long-term exposure will do to the neighbors.
- Austin McKee is against this, but he could be talked into it if they would name the company and explain what exactly will be happening at this site; he is concerned about drought draining wells in the area.
- Betsey Gast-Bray wants to know why they picked this site and why other industrial areas in the county were not selected instead; feels it will take away from the community.
- Tonja Wosniewski passed when called.
- Heather Kistler moved here to get away from industrial areas 12 years ago; her internet research says all the data center complaints are about the noise; property values will be negatively affected; concerned about the wells in the area; wants to know who the company is.
- Terri Moore said the sale of her house fell through when purchasers heard about the data center and were worried about the noise; she is worried about her electric bill going up with all the power this company will charge.
- Derek Johnson said he hears noise coming from the other side of I-70 so they do not want or need this even closer; he does not want to see some unnamed probably foreign company coming in to the community and taking over; does not understand the need for secrecy; if no abatements are given, then what tax breaks are being offered; wonder what happens to the site if the company leaves once the abatement is over.
- Jason Taylor wants a study to see what good this will do for Monrovia; believes Monrovia deserves all the money and profit this will bring to the county because they are the ones that will be most impacted; wants neighbors to be bought out if this negatively affects them.
- Virginia Johnson and Hayden Johnson both passed when called.

- Tammy Everett said she is president of Monrovia's town council and she believes they should table this because they have not had a chance to really look at everything and wants more time to review it all; this will greatly affect Monrovia and no one has talked to the town council about this yet; they have not asked about using the sewer or water; does not like the fact the county is taking the full time EMS out of the town's fire department building and moving it to the edge of town because it is not fair to the citizens that they are moving it just to be closer to this site; said it is not right that members who did not sign the NDA did not get all the information to be able to decide if this is good; she is worried the traffic will affect her ability to get to the hospital in an emergency.
- Steve Unger is the attorney for Monrovia and he challenged the legality of the application and compliance with the county comp plan.
- Samantha Dewester passed when called.
- Brian Willett does not know anyone who likes this project and is worried about noise; believes this will cause issues for everyone; will not help the families in the area; believes all new growth should enhance the county and this does not do that; knows property owners have the right to sell their land but this use should not be allowed.
- Holly Blake passed when called.
- Sean Walker passed when called.
- Steven Willett passed when called.
- Gary Potter is worried this will cause higher property temperatures and more humidity; does not think the 150-foot setback is enough.
- Scott Gabbard said he was speaking on behalf of Charles Kenworthy; concerned about water supply, electricity increase, and property taxes.
- John Louie wanted to point out that this board works for the people and the people say no so the board should say no if they want to be reelected; said this will destroy farmland, dry up wells, and cause light issues.
- Robert Sheler passed when called.
- Robert Berling said there is not enough information about what they are going to be doing; he has done a subdivision before and they had to have all kinds of information about what the houses would look like and sizes before they would approve it; he does not think they should be allowed to do geothermal because this will cause issues for people around them, and they should have to go through Monrovia to get the water so they don't use ground water; does not think this is the right area for this.
- Rebecca Collis passed when called.
- Carol Youngblood said she is a member of the Monrovia town council and this is a huge project she has had very little information about what they want to do; she was not willing to sign the NDA, but she should still get to hear the information about how this could affect their utilities.
- Theresa Krawczyk stated this is all lies and they are not being told about the size, noise, and multiple lawsuits against data centers; she does not believe this will bring any money or jobs to the people who live here.
- Kaitlyn Tipsword passed when called.

- Tonya Cleaver is worried about the health issues this may cause; thinks they should just build a sports complex here like what Plainfield or Indianapolis has done; would benefit people the most; concerned about attracting cybersecurity risk to the area.
- Chuck Eckert passed when called.
- Brad Wozniowski passed when called.
- Janice Weddle lives across from this site and concerned if they build retention ponds it would drain their wells; read online that data centers cause issues with pacemakers and this is a concern because her husband has a pacemaker; thinks they are not going thru all this for a company that will only be here for 10-15 years and leaves when their tax breaks end.
- Kenneth Weddle passed when called.
- Dorothy Robinson passed when called.
- Phil Robinson passed when called.
- Michele Jones worried about effects on wildlife in the area; worried the lights and noise will cause the eagles leave; farm tiles being broken will cause flooding issues; she wants to stay a small town and do not want to grow.
- Carl Gilbert owns a business and he believes that this is not going to bring any jobs to the area because all this type of work is done remotely now; he can barely stand to be in the room while his wife is vacuuming let alone having to hear that level of noise all the time.
- Phillip Wozniowski lives just inside Hendricks County; already so many warehouses in the area that create all kinds of light and noise pollution; said this rezone will open door to others; the buffers they are offering are not going to block anything; they are not really telling us anything that is going to be happening on this site.
- Tami Raymond has lived in the area 20 years and it has become more and more industrial; sick and tired of no one asking what the people in this area want; most people who live here grew up in this area or it is convenient to get to work but they do not want to live in those places so that is why they moved here; would move to Johnson or Hendricks county if they wanted to live next to warehouses; wants to know what this board is doing for small business or do they only want to help big corporations; believes the county should be getting hotels or something like that.
- Janet McKee passed when called.
- Randall McKee thanked the board for letting the public talk; wants to know if this will cause their electricity bill to go up; thinks 5 to 8 years is a long time to deal with construction.
- Gary Terrell passed when called.
- Lisa Terrell passed when called.
- Brandon McGinness passed when called.
- Danielle Smith passed when called.
- Davetta Ploughe concerned about effect on property taxes; if this is such a good thing then why won't they tell the name of the company; only secretive if there is something bad going to happen; does not have bad feelings towards those that are selling their property; wants more time to do research about this; lives in

Monrovia and cannot get water service because there's not enough pressure, so not sure how they can get water for project.

- Stephanie Parks passed when called.
- Justin Nicol passed when called.
- Gary Hawk is concerned about same things already been mentioned but also worried about not knowing name of developer; wants example of an existing site to visit; curious what they do with the used water; will it be dumped or reprocessed; believes decision cannot be made on a project with so many unknowns; people want answers before the board makes a decision; wants board to deny or table until there is more information.

President Brock explained to the audience that the petitioner is allowed time for rebuttal if he wishes. Mr. Calderon returned to the podium and said they worked with Plan Director Laura Parker to make sure everything was completed properly. He noted the board is considering a rezone request, not the development of the facility. The rezone has to come first before any other steps because without the zoning the project cannot move forward. Mr. Calderon said they believe this use is compatible with the comp plan as explained in the staff report. He was allowed to say the company is not a foreign company and the NDAs are to keep things comfortable between the community and the company in case something fell through and the project was not able to be completed because they do not want any hard feelings with the community. Mr. Calderon stated the 150-foot setback is three times more than what the UDO calls for in the I-1 district. They made sure to send letters to even more people than required to ensure everyone was notified. He said for a rezoning petition, there are guidelines to consider and those have been met. Mr. Calderon noted how they removed warehouses from the permitted use list so those will not be allowed to develop in that location. He acknowledged the concerns about noise, but the company will not exceed 65 decibels at the property line. There will be times when it will be even quieter when the system is not running as much to cool the building. Todd Cunningham, from the engineering firm EMH&T, explained how they will do a watershed study before they build anything so they will know where the water needs to go. He went on to say if they cannot water cool they will look at other options and he noted the company does not want to avoid their responsibility when it comes to helping with necessary road improvements.

Member Rumbaugh asked about the height of the buildings. Mr. Cunningham said the PUD standards state they cannot exceed 75 feet, but the only thing that may be that tall is a water tower if they need to put one up. The data center buildings are usually 3 stories or less. President Brock asked the board if they had any other questions. The board indicated they did not at this time.

President Brock called Plan Director Parker to read her staff report to the board. Mrs. Parker then reminded the board again that the state had adopted language in 2019 to encourage technology businesses to locate in Indiana. She also stated that the petitioner made additional revisions to the PUD to increase the building setback and added the noise standard not to exceed 65 decibels. She said the development plan must comply with all state and local development standards before construction begins. Mrs. Parker stated that the staff supports a favorable recommendation for the rezone to PUD.

President Brock asked county attorney Anne Cowgur if this application is legitimate. Ms. Cowgur said she agrees with everything the applicant's attorney has said and believes the application to be legitimate. She wanted to remind the board the petition being considered was for land use and has nothing to do with abatement even though it has been brought up many times during the public hearing.

With all public comment taken, President Brock closed the public hearing and opened the floor for member discussion on PUD-25-01. Member Crone stated he would like to table this for a month so he can have more time to look over all the documents. Member Patrick agreed with Member Crone. Member Rumbaugh stated that years ago they had something like this come in front of them and the county turned it down because the neighbors did not want it and it turned out that the company was Eli Lilly. He thought the county missed out on a lot of benefits when they didn't approve it. Member Maxwell stated the county will collect more property taxes off this one project than if it was a housing subdivision. He noted the water they are using is going to be recycled back into the county's aquifer. Member Maxwell said all the Plan Commission does is send a favorable or unfavorable recommendation to the county commissioners and they have the final decision. Member DePoy stated that Member Rumbaugh made a good point that we should not be short-sighted when this project could be a big boom for the county. Member Frye said he agrees with Members Rumbaugh and DePoy. He understands the concerns the neighbors have, but this board has to look forward for the entire county. He checked and found the State and the Federal government have been throwing money at data center and AI technology development. He read that Indiana is in the top 5 of states that are attracting these uses. Member Hale said he tried back in 2004 to get something like this brought to Morgan County, but it was not the right time back then. Member Rumbaugh said he sees the advantages that this is going to create for kids and the next generation. He acknowledged that all the development details are not known right now, but eventually they will be. President Brock stated that if the discussion is done then the floor is open for a motion. Member Crone made a motion to table this for thirty days. President Brock called for a second. The motion died for lack of a second. Member Frye made a motion to forward a favorable recommendation for PUD-25-01 to the county commissioners. Member DePoy seconded. Motion carried 7-1 with Member Crone voting nay.

ATTORNEY REPORT No report.

PLAN DIRECTOR REPORT No report.

NEXT MEETING: March 10, 2025, at 6:30 pm.

ADJOURNMENT

President Brock called for a motion to adjourn the meeting. Member Frye made a motion to adjourn. Member Hale seconded. Motion carried 8-0.


Terry Brock, President


Jason Maxwell, Secretary

**THE MORGAN COUNTY BOARD OF COMMISSIONERS MET IN A REGULAR
SESSION ON TUESDAY, FEBRUARY 18, 2025 AT 6:30 P.M.**

MEMBERS PRESENT WERE KENNY HALE, BRYAN COLLIER AND DON ADAMS.
LINDA PRUITT, MORGAN COUNTY AUDITOR; DEB VERLEY, EXECUTIVE ASSISTANT;
JOSH MESSMER, COUNTY ADMINISTRATOR; AND ANNE COWGUR, COUNTY
ATTORNEY, WERE ALSO PRESENT.

PLEDGE

PRAYER – (*Kenny Hale*)

MINUTES

Don Adams made a motion to approve the February 3, 2025 minutes. Motion seconded by Kenny Hale. Motion carried 3-0.

CLERK'S REPORT

Kenny Hale acknowledged receipt of the Clerk's Report for January.

BID UPDATE/AWARD – *2024-2 CCMG Paving*

Justin Schneck, Morgan County Highway Department Engineer, stated that they reviewed the bids received at the previous meeting. Milestone was the apparent low bidder at \$1,392,787.50. After correcting math errors on the original Wallace Construction bid of \$1,394,569.56; the bid was corrected to \$1,377,968.85. Mr. Schneck recommended that the bid be awarded to Wallace Construction. Bryan Collier made a motion to approve awarding the bid to the lowest bidder. Motion seconded by Don Adams. Motion carried 3-0.

BID UPDATE/AWARD – *Bridge #99*

Mr. Schneck stated that there were three bids opened at the previous meeting for Bridge #99 on Herbemont Road as follows: Force Construction \$636,210.00; HIS Constructors \$606,372.32; and Pontem Contractors \$595,000.00. Pontem was the lowest responsible and responsive bidder and Mr. Schneck requested they be awarded the bid. Don Adams made a motion to award the bid to Pontem. Motion seconded by Bryan Collier. Motion carried 3-0.

BID UPDATE/AWARD – *Multi Bridge Rehab Project*

Mr. Schneck stated that there were two bids read at the previous meeting for the multi bridge project as follows: All Star Paving \$789,199.25 and Baumgartner Asphalt \$695,091.65. Mr. Schneck noted that he read the wrong number for Baumgartner. He read the Group 1 tab (bridges submitted with original CCMG project) and should have read the Group 2 tab that included the paving for Fire Station Road bridge. The correct bid amount is \$748,491.00. Baumgartner is still the lowest bidder and Mr. Schneck requested approval to award the bid. Bryan Collier made a motion to approve awarding the bid to Baumgartner & Company. Motion seconded by Don Adams. Motion carried 3-0.

HSIP LPA CONTRACT

Mr. Schneck stated that the county was awarded approximately \$700,000 for safety funding from INDOT. The projects are awarded at a 90/10 split. The agreement is with VS Engineering and bundles five different projects together at four locations: a curve on Robb Hill Road, the intersection of Mann and Landersdale Road, Baltimore and Tutterow Road and Greencastle and Gasburg Road. There will be safety improvements at all locations. The submissions were scored by committee and VS Engineering was selected for \$105,000. Mr. Schneck stated that these are the top four location in the county according to crash data from Indiana LTAP (Local Technical Assistance Program). Don Adams made a motion to approve the contract with VS Engineering. Motion seconded by Kenny Hale. Motion carried 3-0.

GRANT APPLICATION – *EMA*

Abby Worth, Morgan County EMA Director, requested approval for a \$29,000 BRIC MHMP grant through IDHS (Indiana Department of Homeland Security) that will allow EMA to obtain assistance in updating the Morgan County Multi Hazard Mitigation Plan. The MHMP operates on a five-year life cycle and is due for updates in 2025. Ms. Worth stated that they would submit the grant application along with a letter of intent. This is a 75/25 grant. The 25% would be made through in-kind donations. Kenny Hale noted that this plan must be in place in order to be eligible for federal grants. Bryan Collier made a motion to approve the grant application. Motion seconded by Don Adams. Motion carried 3-0.

APPOINTMENT – *Harrison Twp Fire District Board*

Kenny Hale stated that Chuck Christofferson resigned from the Harrison Township Fire District

Board. Richard Huffman has expressed interest in serving on the board. Don Adams made a motion to appoint Mr. Huffman to the vacated position. Motion seconded by Kenny Hale. Motion carried 3-0.

TORT CLAIM

Bryan Collier made a motion to submit the Evergreen Properties & Self Storage tort claim to the insurance company. Motion seconded by Kenny Hale. Motion carried 3-0.

REQUEST FOR ADDITIONAL TIME OFF

Daree Fry, Morgan County HR Director, stated that there is an employee who is out of time and has a parent that has been put on hospice in another state. They are asking for unpaid time off. Another employee in a different department has offered to donate time to the employee. Anne Cowgur stated that she understood the sympathy that the Board has always shown; however, there is no authorization for donating time in the law and she has concerns that this practice could come back to haunt the person who receives the donation. Because of this, she recommends that the Board not continue this practice. Ms. Cowgur stated that she just advises on the law, she does not make policy. Bryan Collier stated that upon legal advice, he would make a motion to deny the donation of PTO and leave it up to the department head as to whether they wanted to allow unpaid time off in order to hold the position. Motion seconded by Kenny Hale. Motion carried 3-0.

ORDINANCE 2025-1 – UDO Data Center

Kenny Hale stated that this ordinance concerns a rezone request. Laura Parker, Morgan County Plan Commission Director, stated that this is a PUD district (Planned Unit Development). The request was heard by the Plan Commission on February 10 and received a favorable recommendation of 7-1. Ms. Parker had submitted staff reports and other handouts previous to the meeting.

Joe Calderon, Barnes & Thornburg, representing the applicant, stated that the primary purpose for the property will be a data center, which is not adequately defined in the UDO (Unified Development Ordinance). They are within the light industrial standards and included two additional uses; research and development and light manufacturing. There are some single family homes in the area and the owners have chosen to stay post development. They have included those homes are being allowed as a permitted use within the PUD, but no new ones. PUD often times mixes uses and that's what they have done here. They are able to tailor the proposed standards in comparison to the ordinance. They will exceed the set-back and buffering standards; public right of way frontage is tripled (150 feet) and there will be a landscape berm. Following the public hearing last week, they have included a noise standard with a maximum of 65 decibels after operations. They will do a noise study after a building comes online and is operational. Bryan Collier stated that according to a study from Harvard, 60 to 70 decibels is a normal conversation. Mr. Collier noted that one of the concerns raised by the public regarded foreign companies; this is a Fortune 50 American-owned company.

The following people spoke in opposition to the data center: Janice Weddle, SR 42; Brian Willett, Keller Hill Drive; Randall McKee, Willow Run Court; Sean Walker, Antioch Rd; Michele Jones, Hinshaw Road; Matt O'Neal, Peaceful View Drive; Carl Gilbert, SR 42; Heather Kistler, Antioch Road; Loren Moore, representing the Town of Monrovia and the residents; Stephanie Parks, Ashton Lane; John Louie, Gasburg Road; Lindsay Robinson, Main Street (Monrovia); Wade Catt, SR 39.

Joe Calderon stated that a number of the issues that were raised by the people speaking in opposition will be fully vetted throughout the permitting process, including drainage, stormwater runoff, and stormwater quality. They meet the standards for lighting as set forth in the UDO. The intent is to draft an ordinance that provides more protection for the neighbors than the UDO provides. They should not be able to see the project from their homes. The five to eight years of construction is a guess. It normally takes a year or less to open the first building. Technology and needs change and it depends upon the power source and water source. If those are available on day one, it will move quicker; if not, it may take longer. They are willing to work with the county to make sure they mitigate any concerns about construction noise and traffic. Many concerns will be taken care of through the normal permitting process and controls that the county has in place. This is not a bitcoin mining or merchant data center.

Anne Cowgur stated that this ordinance was presented to the Board of Commissioners after going through a full Plan Commission review including a public hearing. The proposal received a recommendation to adopt from the Plan Commission. In making a determination of whether to pass the ordinance or not, the Board is required to assess the following items:

- The comprehensive plan
- Current conditions and the character of current structures and uses in each district

The most desirable use for which the land in each district is adapted
The conservation of property values throughout the jurisdiction; and
Responsible development and growth

In addition, for a PUD, the ordinance must include development requirements. Ms. Cowgur stated that it is important to note that they are in the very early stages of the process. This is a zoning decision that has been presented as a concept. Once the project has more details, it will go through design standards, development processes and the county will be able to review the actual proposed buildings to confirm that the overall standards are adhered to. The record shows that the proper notice requirements were fulfilled leading to the Plan Commission meeting and public hearing. All the legal notices were posted and/or sent. Ms. Cowgur stated that the statement was made by Monrovia leadership that they were not involved in the process and expressed concerns about that. Upon investigation into this statement, Ms. Cowgur learned that Monrovia were in fact invited to meet with the developer and discuss the project, albeit confidentially so as not to jeopardize the project before it started, and one leader met with the developer and expressed support; others declined. There have also been assertions that property owners had not consented to the PUD proposal and that is also incorrect. Language from the purchase agreements was provided to the Plan Director prior to the public hearing and they also have explicit consent and ratification of actions taken on behalf of the property owners. There have been specific questions about the standards set out in the PUD, there have been hypothetical scenarios presented about would be built or how bad things could be if the project proceeds or doesn't proceed. They are in the very early stages of the process; the county will have input into the buildings and fixtures that go on the properties. If the building's parking lot, greenspace, water retention does not meet county standards, then the county won't approve the project. If the project does not proceed, the Plan Commission can amend the PUD in the future or tailor the zoning for a future project. Ultimately, this body must determine the appropriate zoning based on the current conditions, the most desirable use, the affect on property values, and responsible growth for the area. The PUD ordinance as presented can be adopted by the Board of Commissioners within and under the statute.

Kenny Hale thanked the public for attending and voicing their opinions. Mr. Hale worked with a company several years ago to get a data center established on the SR 37/I-69 corridor because just having a residential property tax base hits the pocketbook. Mr. Hale stated that he supports the project.

Don Adams thanked the public for their participation. Mr. Adams stated that it would be important to invest back into Monrovia. Mr. Adams received a call from a resident of Monrovia who supported the project and stated that it is good for the school, for kids to stay in the community and for opportunities. It is not a warehouse and provides positive opportunities. Mr. Adams stated that he had faith that the project would be a good thing for Monrovia, Morgan County and future generations. There are further checks as the project moves forward.

Don Adams made a motion to approve Ordinance 2025-1. Motion seconded by Bryan Collier. Motion carried 3-0.

FOR THE GOOD OF THE COUNTY

Bryan Collier stated that they listened to concerns and complaints and the project is good for the county.

ADJOURNMENT

Bryan Collier made a motion to adjourn the meeting. Motion seconded by Don Adams. Motion carried 3-0.

Morgan County Board of Commissioners

Don Adams

Attest:

Bryan A. Collier

Linda Pruitt, Morgan Co. Auditor

Kenny Hale